

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

2026CLBC064356: DAVID LEIGHTON vs GISELLE GUILLAUME, et al.

06/26/2026 in Department 21

Motion to Place Documents Under Seal Under Code of Civil Procedure Section 367.3 (Safe at Home)

Tentative Rulings. Parties and counsel appearing for oral argument should address the tentative decision. Parties may submit on the tentative decision by email, with a copy to all other parties in the matter, to courtroom21@ventura.courts.ca.gov before 8:00 a.m. on the day set for the hearing, with a subject line that includes "SUBMISSION ON TENTATIVE", Case Number, Title and Party. If fewer than all parties submit on the tentative, the hearing will proceed, and the tentative ruling is subject to change. The clerk cannot advise if you should still appear or not. The decision of whether to appear for a hearing is to be made by the parties and their counsel. (Dept. 21 Rules & Procedures, p. 4, § II.I.)

The following is a statement of the Court's tentative ruling. The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion: Defendant Giselle Guillaume's Motion to Place Documents Under Seal Under Code of Civil Procedure Section 367.3 (Safe at Home) (*Opposed*)

Tentative Ruling: If Defendant provides proof of her participation in the Safe At Home Program at the hearing, the Court will GRANT Defendant's request to proceed under a pseudonym.

Defendant's request to place documents under seal is CONTINUED to July 9, 2026, at 8:30 a.m.

Defendant is to serve and file (1) the Confidential Information Form (SH-001); and (2) the redacted versions of the documents, moving party's true name with the pseudonym Jane Doe, and redacting only the "identifying characteristics" as identified under CCP 367.3(a). These documents are to be served and filed no later than July 2, 2026. Any opposition is to be served and filed no later than July 6, 2026.

Discussion:

A. Legal Authority

To demonstrate that one is an active participant in California's Safe at Home program for the purpose of filing a motion to seal a record under CCP § 367.3, a party must establish that they are a "protected person" under the statute. This is achieved by showing that the individual is currently certified as an active participant in the address confidentiality program established pursuant to Chapter 3.1 of Division 7 of Title 1 of the California Government Code (i.e., Cal Gov Code § 6205 *et seq.*). (CCP § 367.3(a)(3).)

Under Cal Gov Code § 6206(c), the Secretary of State certifies an applicant as a program participant upon the filing of a properly completed application. To substantiate active enrollment, the individual is issued an authorization card by the Secretary of State, which remains valid during their active term of participation. (See Cal Gov Code § 6206.7.)

Once active participation is demonstrated, CCP § 367.3. permits the protected person to move the court for an order to file a record, or part of a record, under seal. This motion must be executed in accordance with California Rules of Court, rules 2.550 and 2.551. (CCP § 367.3(b)(4).)

Filing the Motion or Application: The protected person must file a motion or application accompanied by a memorandum of points and authorities and a declaration containing facts sufficient to justify the sealing. (Cal. Rules of Court, rule 2.551, *Marino v. Rayant*, 110 Cal. App. 5th 846 (2025).)

Required Factual Findings: Although the moving party is an active participant in the Safe at Home program, the court may only order the record sealed if it makes express factual findings under California Rules of Court, rule 2.550(d):

- 1) There is an overriding interest overcoming the right of public access;
- 2) The overriding interest supports sealing;
- 3) A substantial probability of prejudice to that interest exists if the record is not sealed;
- 4) The proposed sealing is narrowly tailored; and
- 5) No less restrictive means exist to achieve the overriding interest.

(Cal. Rules of Court, rule 2.550(d), *Mercury Interactive Corp. v. Klein*, 158 Cal. App. 4th 60 (2007).)

Lodging and Redaction: The requesting party must lodge the unredacted records conditionally under seal with the court when the motion is made. (Cal. Rules of Court, rule 2.551, *Mercury Interactive Corp.*, *supra*). The party must also file a public redacted version of the documents, excluding or redacting all "identifying characteristics" of the protected person. (CCP § 367.3, Cal. Rules of Court, rule 2.551.)

Confidential Information Form: If the protected person is proceeding under a pseudonym, they must file and serve a confidential information form containing their true name and other excluded identifying characteristics, which the court must keep confidential. (CCP § 367.3.)

B. Analysis

There are procedural defects in the moving party's request. Moving party has not included the Confidential Information Form (SH-001) or redacted versions of the documents to be sealed indicating which information she specifically wishes sealed.

In order to qualify under CCP § 367.3, the moving party must show they are a "protected person," meaning "a person who is an active participant" in the Safe At Home program. (CCP § 367.3(a)(3).) There is no showing that moving party is, in fact, an active participant of this program other than her statement in her declaration.

Without knowing exactly what the moving party is seeking to seal or redact, the Court is unable to make the required five (5) factual findings under Cal. Rules of Court, rule 2.550(d).

(1) Overriding interest (2) supporting sealing: It is not exactly clear from the declarations exactly what specific information the moving party is seeking to keep from public scrutiny. Plaintiff correctly points out in his opposition that "Here, the records contain nothing more than a stale past address the defendants once resided at in the past and their names which are already known to their alleged stalker, The defendants' physical location is already protected under the Safe at Home program. There is nothing expressly confidential in any of the documents filed with the court and nothing contained in the records could be used in any way to find the defendants' current location."

(3) Substantial probability of prejudice: The prejudice to moving party would be substantial if the current and future public documents were to enable a prior perpetrator of domestic violence to locate her and harm her. Although it is difficult to discern whether there is a substantial probability of harm based on her Declaration, the fact that moving party is a participant in the Safe at Home Program suffices, assuming there is proof of participation in this program.

(4) Sealing is narrowly tailored and (5) no less restrictive means: Moving party has not shown the need for sealing all the court documents. To the extent the previously filed documents contain identifying information, redaction of this information would be the less restrictive means. Since it is not clear which information is of concern, it is difficult to determine whether moving party's request is the least restrictive means available of protecting her.

In sum, the Court GRANTS moving party's request to proceed as Jane Doe and CONTINUES the request to seal all records to July 9, 2026, at 8:30 a.m.

Moving party is to serve and file the SH-001 Confidential Information Form and redacted versions of the documents, replacing moving party's true name with Jane Doe, and redacting only the identifying characteristics as identified under CCP 367.3(a). These documents are to be served and filed no later than July 2, 2026. Any opposition is to be served and filed no later than July 6, 2026.